

25LBCV00250 25LBCV00250

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-06-25

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS27%2C06%2F25%2F2026

Source SHA-256: 7a926492e2ddac8895468ebaa4558b47cbb0ae4c35f7316200ffb0c076e6cd30

Case Number: 25LBCV00250 Hearing Date: June 25, 2026 Dept: S27

Defendant presents the following timeline in connection with this motion for additional monetary sanctions:

.

8/27/25

notice of deposition for 9/16/25 and 9/17/25; Plaintiffs object and indicate will not appear;

.

1/20/26

meet and confer results in scheduling deposition for 3/19/26; Plaintiffs cancel on 3/18/26;

.

4/24/26

ex parte hearing, Court orders Plaintiffs to appear for deposition by 5/15/26;

.

Defendant

notices depositions for 5/13/26, but neither plaintiff appears;

.

5/20/26

ex parte hearing, Court orders Plaintiffs to appear for deposition on 5/22/26;

.

5/22/26

one of the two plaintiffs appears, the other does not;

6/01/26

ex parte hearing, Court orders second plaintiff to appear for deposition at 2:00 p.m.; the plaintiff does so, but does not bring responsive documents or answer all questions; Court sets hearing on this motion and a briefing schedule.

Plaintiffs oppose the motion, arguing the motion is moot because all discovery has been completed, any dissatisfaction with the scope of the 6/01/26 deposition should be addressed by way of a motion to compel a further deposition, and there was no meet and confer.

Plaintiffs' primary contention is that sanctions should not be imposed because they have complied with all orders. Plaintiffs cite various cases in support of this position. They first cite *Rodriguez v. Brill* (2015) 234 Cal.App.4th 715, 729. Monetary sanctions were not at issue in *Rodriguez*, which considered a motion for relief from judgment. Plaintiffs next cite *Electronic Funds Solutions, LLC v. Murphy* (2005) 134 Cal.App.4th 1161, 1183. Page 1183 discussed the trial court's imposition of a terminating sanction and held the sanction was appropriate; nothing in the cited portion of the case concerned monetary sanctions. Plaintiffs also cite *Van Sickle v. Gilbert* (2011) 196 Cal.App.4th 1495, 1516. *Van Sickle* also concerned terminating sanctions, not monetary sanctions. Plaintiffs next cite *J.W. v. Watchtower Bible and Tract Society of New York, Inc.* (2018) 29 Cal.App.5th 1142, 1169, which ALSO concerned terminating sanctions.

Plaintiffs contend scheduling errors do not give rise to monetary sanctions, citing *Lopez v. Watchtower Bible and Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604 and *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280. In *Lopez*, the Court of Appeals expressly held that the trial court could and should have imposed sanctions for the offending party's conduct, but terminating sanctions were too severe. The Court cannot locate any portion of *Lopez* that discusses a scheduling error. In *Mileikowsky*, the parties entered into a stipulation re: discovery, and the issue on the motion for terminating sanctions was whether the stipulation had the same force and effect as a discovery order.

The trial court held that it did and awarded terminating sanctions, and the appellate court agreed.

The Court is frankly appalled that Plaintiffs cited six cases they contend establish monetary sanctions for failure to appear at a properly noticed deposition are not appropriate in the event the party eventually appears, and not a single one of the cases concerned or discussed the issue for which Plaintiffs cite them. Plaintiffs' attorneys have engaged in this type of abhorrent behavior in the past in this courtroom, and it will not be tolerated.

The Court finds sanctions are both expressly permitted by the Discovery Code and also warranted under the circumstances. Plaintiffs' attorneys' eleventh hour scrambling to comply with a second court order in no way exonerates them from the costs they caused Defendant to incur because of their bad behavior.

The Court has reviewed Defense Counsel's declaration and finds each of the costs and fees sought by way of the motion was incurred directly as a result of Plaintiffs' failure to appear at properly noticed depositions. The motion is therefore granted in its entirety. Plaintiffs and their attorneys of record are ordered to pay sanctions to Defendant, by and through its attorney of record, in the total amount of \$19,772.50, within twenty days.

Defendant is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.